

HOUSE No. 1955

The Commonwealth of Massachusetts

PRESENTED BY:

David M. Rogers and Greg Schwartz

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fentanyl test strips.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>1/16/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/23/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>4/28/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/5/2025</i>

HOUSE No. 1955

By Representatives Rogers of Cambridge and Schwartz of Newton, a petition (accompanied by bill, House, No. 1955) of David M. Rogers, Greg Schwartz and others relative to the decriminalization of fentanyl test strips. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fentanyl test strips.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 94C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “substances”, in line 123, the
3 following words:- ; provided, however, that said testing equipment shall not include fentanyl test
4 strips or any testing equipment or device solely used, intended for use or designed to be used to
5 determine whether a substance contains fentanyl or its analogues.

6 SECTION 2. Said chapter 94C is hereby further amended by inserting after section 19F
7 the following section:-

8 Section 19G. Any person who, in good faith, provides, administers or utilizes a fentanyl
9 test strip or any testing equipment or device solely used, intended for use or designed to be used
10 to determine whether a substance contains fentanyl or its analogues shall not, as a result of the
11 person’s acts or omissions, be subject to any criminal or civil liability or any professional

- 12 disciplinary action; provided, however, that this section shall not apply to acts of gross
- 13 negligence or willful or wanton misconduct.